

Tentative Rulings and Resolution Review Hearings

August 24, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

Tentative Ruling on Motion to Deem Requests for Admission Admitted and Compel Response to Discovery: Defendants Michael J. Schraner and Janet Schraner seek an order deeming the truth of the matters specified in Defendants' Requests for Admission, Set One to be admitted by Plaintiff Michael D. Allen, compelling verified responses to Form Interrogatories, Set Two, and monetary sanctions. Despite being properly noticed, Plaintiff did not oppose the motion.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). A party has thirty days after service to respond to Form Interrogatories. CCP § 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP § 2030.290(a).

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been

provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to do so, Defendants' counsel sent a letter to Plaintiff attempting to meet and confer on June 26, 2026.

Defendants have provided evidence that Plaintiff was served by mail on May 20, 2026 with Defendants' Form Interrogatories, Set Two and Requests for Admission, Set One. It is now more than thirty days since Plaintiff was served and Plaintiff has not responded to the propounded discovery. The Court finds that there is good cause justifying the discovery sought by Defendants. The Court notes that Form Interrogatories, Set Two only included Item 17.1, which seeks information about each Request for Admission. Deeming the Requests for Admission admitted renders a response to 17.1 moot.

Sanctions. CCP § 2030.290(c) only provides for sanctions when an unsuccessful opposition is made, however, the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when no opposition was filed. CRC 3.1348. Monetary sanctions are mandatory when a party fails to timely respond to Requests for Admission. CCP § 2033.280(c). Defendant seeks \$1,710 in monetary sanctions which is comprised of a \$60 motion fee, four hours of attorney time for the motion, and 1.5 hours of attorney time for Plaintiff failing to attend the Mandatory Settlement Conference on June 8, 2026. There is no legal basis for the Court to award the 1.5 hours requested for the Mandatory Settlement Conference. The Court will award four hours for the discovery motion and \$60 for the motion fee. Counsel requests the rate of \$300 per hour which the Court finds to be reasonable. Monetary sanctions are awarded to Defendants in the amount of \$1,260.

The motion is **GRANTED**. Plaintiff is deemed to have admitted as true each of the items contained in Defendants' Request for Admissions, Set One. Because the Requests for Admission have been deemed admitted, there is no need for a response to Form Interrogatories, Set Two. Monetary sanctions are awarded to Defendants in the amount of \$1,260. Plaintiff provided a proposed Order, however, the proposed Order does not contain the text of the Requests for Admission being deemed admitted. Defendant shall provide a proposed Order that includes the text of Requests for Admission, Set One.

BAMFORD, ET AL. VS. BURNEY WATER DISTRICT
CASE NUMBER: 24CV-0204809

Tentative Ruling on Order to Show Cause Re: Sanctions: On July 30, 2026, the Court issued an Order to Show Cause Re: Sanctions (OSC) to Guardian ad Litem Lavon Bamford for failure to appear at the July 29, 2026 hearing. The Court's intent was to issue an Order to Show Cause Re: Termination of Lavon Bamford as the Guardian ad Litem for Kira Bamford and Klearwater Bamford for failure to participate in the action. However, due to a clerical error, the Order to Show Cause Re: Sanctions issued. The Order to Show Cause Re: Sanctions is **DISCHARGED**.

The Court will issue an Order to Show Cause Re: Termination as Guardian ad Litem to Lavon Bamford. Hearing on the Order to Show Cause Re: Termination will be on **Monday, October 12, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause Re: Termination and serve counsel for Plaintiffs and Defendant as well as Lavon Bamford directly. Plaintiffs' counsel is reminded that should Lavon Bamford be terminated as the Guardian ad Litem, Plaintiffs' counsel will need to find a suitable replacement and submit applications for both Kira Bamford and Klearwater Bamford.

IN RE: CLAREY
CASE NUMBER: 26CV-0210037

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication was filed on June 2, 2026. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the Order to Show

Cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Proof of Service was filed on July 20, 2026 indicating that “MC-030, NC-100, and NC-120” forms were personally served on the father on July 17, 2026. This is more than thirty days prior to today’s hearing, however, because an Amended Order to Show Cause never issued, it is unclear if any of the documents served provided notice of today’s hearing or only provided notice of the original hearing date of May 26, 2026. **An appearance by Petitioner is necessary on today’s calendar. The Court will inquire regarding the contents of the Order to Show Cause (NC-120) served on the father on July 17, 2026.**

IN RE: EASTER

CASE NUMBER: 26CV-0210772

Tentative Ruling on Petition for Change of Name: Petitioner Jessica Penny Easter seeks to change her name to Penny Georgia-Darlene Hetzel No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: EMERY

CASE NUMBER: 26CV-0210809

Tentative Ruling on Petition for Change of Name: Petitioner Alex Emery seeks to change his name to Alexandre David Podtetenieff. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Motion for Summary Judgment or Adjudication: Defendant FCA US, LLC moves for summary judgment, or in the alternative, summary adjudication. The motion was originally noticed for September 29, 2025, however, the hearing continued by stipulation of the parties to January 26, 2026. Plaintiffs Taryn and Ryan Ham moved for a continuance of the January 26, 2026 hearing pursuant to CCP § 437c(h) alleging that they had been unable to depose Defendant’s PMQ. The Court granted the continuance. At a February 9, 2026 status conference, the parties informed the Court that the PMQ deposition was scheduled and June 15, 2026 was selected for the hearing date on the motion. Plaintiffs did not file an Amended Opposition. The Court’s tentative ruling on June 15, 2026 required an appearance because it was unclear if the motion was going forward. Plaintiffs did not appear. When the matter was back on calendar on July 26, 2026, both parties informed the Court that the motion was fully briefed and could move forward. Based on the Court’s calendar, the earliest date possible was August 17, 2026 which is why the Court found good cause to hear the motion less than thirty days prior to trial. A visiting judge who recused on the matter was present on August 17, 2026 and the hearing again moved to the earliest available date of August 24, 2026. The Court continues to find good cause to hear the motion within thirty days of trial. Because all issues regarding CCP § 437c(h) have already been addressed, they are not addressed in this tentative ruling.

Evidentiary Objections. The Court rules as follows on the evidentiary objections made by Defendant:

Declaration of Rabiya Tirmizi.

1. Sustained as improper legal opinion
2. Overruled
- 3-6. A ruling is only required on objections to evidence that are material to the disposition of the motion. This pertains to the request for a continuance under CCP § 437c(h), which is not an issue in this ruling.

Declaration of Taryn Ham and Ryan Ham

1. Overruled

2. Overruled
3. Overruled
4. Overruled
5. Overruled
6. Overruled
7. Sustained as improper legal opinion for the first sentence only. Overruled a to the balance
8. Overruled
9. No objections listed to rule on
10. Overruled
11. Overruled

Request for Judicial Notice. Plaintiffs request the Court take judicial notice of seven documents found at the website NHTSA.gov pursuant to Evid. Code §§ 452(c) and (h). A copy of each was provided and no objections were lodged. The requests are granted pursuant to Evid. Code §§ 452(c) and (h) and 453.

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. CCP § 437c(o). Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(p)(2). The scope of the defendant's initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences "in the light most favorable to the opposing party." CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 843. "Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact." *Johnson v. Superior Court* (2006) 143 Cal. App. 4th 297, 304.

Here, Defendant seeks summary judgment as well as summary adjudication of six issues.

First Cause of Action – Civ. Code § 1793.2(d). Defendant states in the Notice of Motion, "No evidence of recurring defect, all repairs were minor, isolated and resolved. A single repair attempt is legally insufficient to establish a breach under *Silvio v. Ford* and its progeny."

Civ. Code § 1793.2(d) requires that if a manufacturer does not service or repair the goods to conform to applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer. The elements are listed in CACI 3200.

The Complaint in this matter was filed on November 26, 2024 and has not been amended. Plaintiffs specify that the defects and nonconformities include, but are not limited to, "electrical battery defects, engine defects, transmission defects, electrical defects." *Complaint* ¶ 15. The parties agree that on July 15, 2021, Plaintiffs purchased a 2021 Jeep Wrangler manufactured by Defendant and that Defendant provided a warranty. Regarding the condition of the vehicle, it was presented on May 10, 2022. The parties dispute what occurred on May 10,

2022, therefore, the Court relies on the actual evidence presented. Per the Invoice No. 45944, the oil was changed, tires were rotated, and warranty work was performed under six RRTs. Item H notes “Need to Order Part, Will Call When Part Arrives.” Per Plaintiffs’ declaration, the missing part was a fuel cap tether. *Plaintiffs’ Decl.* ¶ 12. The fuel cap tether replacement occurred on May 13, 2022. The vehicle was presented again on September 13, 2022. Per Invoice 47851, there was red rust on rear bumper bolts and parts needed to be ordered under RRT22-115. Regarding the check engine light, the vehicle was scanned for codes and “found p4ed evap leak, performed smoke test and found the tether that holds the gas cap is pinched between cap and filler neck.” The vehicle was repaired per the correction noted. Invoice 48622 for a visit on November 3, 2022 reflects standard maintenance and warranty work under RRT22-115. This was the RRT related to the rear bumper bolts that had been raised at the September 13, 2022 visit. The parties agree that warranty work was performed on December 19, 2022. The vehicle was presented on July 18, 2023 for work under RSU 23-037. The parties disagree regarding the March 25, 2024 visit. Per Invoice 55540, there were wiring issues in the front bumper, condensation in the rear spare tire area which the technician noted was caused by a plastic bracket being cracked, and Plaintiffs stated that while idle or at low speeds and that the rpms seemed high. The vehicle was test driven and the technician noted, “no problems at this time.” The parties agree that also on March 25, 2024, two safety recalls were performed and that the vehicle was out of service for five days for the visit. Routine maintenance was performed on November 13, 2024. The Court notes that the Complaint in this matter was filed on November 26, 2024. Based on the several visits and warranty work required, coupled with the time the vehicle was out of service, a reasonable jury could find that the vehicle did not perform as stated or that it did not match the quality of a 2021 Jeep Wrangler. There were two occasions in which the repair was not performed the same date, and in the instance of the bolts, the repair was a month and a half later (September 13, 2022 to November 3, 2022). Defendant did not replace the vehicle. The Court notes that an actual request for repurchase is not necessarily required. Defendant has an affirmative obligation. As to the First Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Second Cause of Action – Civ. Code § 1793.2(b). Defendant states in the Notice of Motion, “Each repair was completed well within the statutory window under Civil Code § 1793.2(b); no repair took more than a single day.”

Civil Code § 1793.2(b) provides that repairs must be commenced within a “reasonable time,” and the goods shall be serviced or repaired to conform to the applicable warranties within 30 days. As noted above, there was a repair that took more than thirty days. As to the Second Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Third Cause of Action – Civ. Code § 1793.2(a)(3). Defendant states in the Notice of Motion, “No evidence FCA failed to provide sufficient parts or service literature. All repairs were timely and performed without delay.”

Civil Code § 1793.2(a)(3) states that every manufacturer who has made an express warranty shall “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” As noted above, there were two occasions where Plaintiffs had to return due to parts not being available, one of those times being in excess of thirty days. As to the Third Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Fourth Cause of Action – Civ. Code §§ 1791.1, 1794, and 1795.5. Defendant states in the Notice of Motion, “The implied warranty expired by operation of Civil Code § 1791.1(c), and the vehicle remained fit for ordinary use.” The implied warranty of merchantability or fitness lasts for up to one year from the date of purchase. Civ. Code § 1791.1(d). To be merchantable, consumer goods must meet each of the following:

- (1) Pass without objection in the trade under the contract description.
- (2) Are fit for the ordinary purposes for which such goods are used.
- (3) Are adequately contained, packaged, and labeled.
- (4) Conform to the promises or affirmations of fact made on the container or label.

Civ. Code § 1791.1(a).

The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal. App. 4th 1297, 1304. Per the Consumer Alert issued by NHTSA on November 4, 2025, a recall affecting 228,221 Jeep Wranglers issued regarding a battery defect issued “due to risk of fire while parked or driven.” *Plaintiffs’ RJN, Ex. 8*. The Consumer Alert states, “Owners should park their vehicle outside and away from structures and other vehicles or other vehicles until their vehicle has been remedied. In addition, owners should not charge unrepaired vehicle batteries because the risk of fire is higher in a charged battery than when the battery is depleted.” *Id.* A reasonable jury could find that a defect of this magnitude was latent and existent in the vehicle at the time of purchase, especially when coupled with the battery issues noted in the service records provided. As to the Fourth Cause of Action, Court finds sufficient triable issues of material fact to warrant a denial of summary adjudication.

Sixth Cause of Action – Fraudulent Inducement – Concealment. Defendant states in the Notice of Motion, “No duty to disclose; no actionable concealment; and the claim is barred by the Economic Loss Rule. Plaintiffs also disclaimed knowledge of any misrepresentation or omission in verified discovery.”

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

In Plaintiffs’ UMF 26, Plaintiffs refer to the Complaint as if the Complaint is evidence. It is not. However, Plaintiffs do point to the first TSB provided in evidence, which is dated August 26, 2021. *Plaintiffs’ RJN, Ex. 1*. This is just over a month from the time of purchase. The TSB is related to the battery. A reasonable jury could infer that Defendant was aware of at least some issues with the battery prior to Plaintiffs’ purchase. No battery issues were disclosed to Plaintiffs prior to purchase and Plaintiffs have provided a declaration that they would not have purchased the vehicle had they known it may have battery issues. Additionally, Plaintiffs have presented evidence that they reviewed FCA-produced materials on FCA’s website and discussed the vehicle with the representative at the authorized dealer and that none of the communications disclosed a potential battery defect.

Regarding a duty to disclose, in *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Plaintiffs purchased the Subject Vehicle from Defendant SJ Denham and entered into a warranty contract with Defendant FCA US. The transactional relationship here is the same as the transactional relationship the Court found sufficient to withstand demurrer in *Dhital*.

Regarding the Economic Loss Rule, in *Rattagan*, the Court examined whether conduct occurring in the course of a contractual relationship can give rise to a tort claim. Plaintiffs here make the distinction that their claim is for fraudulent inducement, which necessarily occurs prior to contract formation, not in the course of the relationship. In *Rattagan*, the Court addressed this distinction:

As we observed in *Lazar*, “fraudulent inducement of contract — as the very phrase suggests — is not a context where the ‘traditional separation of tort and contract law’ [citations] obtains. To the contrary, this area of the law traditionally has involved both contract and tort principles and procedures. For example, it has long been the rule that where a contract is secured by fraudulent

representations, the injured party may elect to affirm the contract and sue for the fraud.” (*Lazar, supra*, 12 Cal.4th at p. 645, 49 Cal.Rptr.2d 377, 909 P.2d 981, *citing Campbell v. Birch* (1942) 19 Cal.2d 778, 791, 122 P.2d 902; *see generally* 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 726, pp. 825-826.) The same may not necessarily be true of fraudulent concealment claims based on conduct occurring after the contract has been formed.

Id. at 41.

Thus, the *Rattagan* decision itself counsels against its applicability here, where Plaintiffs have alleged fraudulent inducement of contract and presented evidence that the fraudulent concealment occurred prior to contract formation.

While the Court recognizes that the evidence presented does not amount to a particularly strong case for fraudulent concealment, the Court also recognizes that, for purposes of this motion, the evidence must be viewed in the light most favorable to Plaintiffs. With that standard in mind, a triable issue of material fact exists. Therefore, summary adjudication on the Sixth Cause of Action is not warranted.

Civil Penalties and Punitive Damages. Defendant states in the Notice of Motion, “Plaintiffs cannot establish willfulness under Civil Code § 1794(c)-(e), and no basis exists for punitive damages.”

This summary adjudication issue is actually several issues lumped into one. Therefore, if summary adjudication as to any of the parts is not warranted, summary adjudication has to be denied. Civ. Code § 1794(c) allows for the recovery of a civil penalty if the buyer establishes that the failure to comply was willful. Civ. Code § 1794(d) allows for attorney fees when a buyer prevails. Civ. Code § 1794(e) relates to a violation of Civ. Code § 1793.2(d)(2). Finally, punitive damages are recoverable in instances of fraud. See Civ. Code § 3294. A denial of summary adjudication of the Sixth Cause of Actions means that punitive damages are recoverable. Therefore, summary adjudication on this issue is not warranted and the Court need not analyze the balance.

With each of the six summary adjudication issues being **DENIED**, summary judgment is also **DENIED**. Defendant provided a proposed Order that will be modified to reflect the Court’s ruling. The Court confirms the trial date of August 25, 2026.

KENDALL VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.

CASE NUMBER: 25CV-0208306

Tentative Ruling on Motion to Compel Arbitration: Plaintiff Cindy Kendall moves to compel arbitration on her Complaint filed July 29, 2025. Defendant Hat Creek Construction & Materials, Inc. opposes the motion.

As a preliminary matter, Defendant filed a document titled “Defendant Creek & Construction Materials, Inc.’s Objections to Portion of Reply Brief and Declarations of Jonathan Kaldas and Cindy Kendall” on August 18, 2026. There is no explanation regarding why objections to the declarations filed with the moving papers were not made at the time the Opposition was filed and Defendant instead waited until Plaintiff had filed their Reply to object. It is surprising to the Court that Defendant is arguing about whether the agreement produced by Defendant in discovery can be admitted. The objection to the agreement and ¶ 2 of the Declaration of Jonathan Kaldas are overruled. The remaining objections are not to evidence, but to Plaintiff’s argument and need no ruling.

Request for Judicial Notice. In the Declaration of Benjamin L. Kennedy, Defendant requests the Court take judicial notice of the Declaration of Jonathan Kaldas filed June 23, 2026 and the Court’s Ruling dated July 13, 2026. The request is granted pursuant to Evid. Code § 452(d).

Merits. Generally, the analysis of a motion to compel arbitration starts with whether an agreement to arbitrate signed by the parties exists and whether the agreement covers the claims asserted. Here, the parties do not dispute either. While Defendant objected to the agreement being admitted into evidence for a lack of foundation, there has been no evidence presented that would lead the Court to conclude that the agreement attached as Ex. 1 to the Declaration of Jonathan Kaldas is anything other than an agreement signed by Plaintiff and an authorized representative of Defendant. Neither party has asserted that the claims alleged are not covered by the agreement. Neither party has raised any issues of either substantive or procedural unconscionability. Defendant opposes the motion on the basis of waiver and the transportation worker exemption.

To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. (*Lynch, supra*, 3 Cal.5th at p. 475; see *Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 31 [44 Cal. Rptr. 2d 370, 900 P.2d 619] (*Waller*) [burden is on party claiming waiver “to prove it by clear and convincing evidence”]; 30 Cal.Jur.3d, *supra*, Estoppel and Waiver, § 38.) Under the clear and convincing evidence standard, the proponent of a fact must show that it is “highly probable” the fact is true. (*Conservatorship of O.B.* (2020) 9 Cal.5th 989, 995 [266 Cal. Rptr. 3d 329, 470 P.3d 41] (*O.B.*)). The waiving party’s knowledge of the right may be “actual or constructive.” (*Outboard Marine Corp. v. Superior Court* (1975) 52 Cal.App.3d 30, 41 [124 Cal. Rptr. 852].) Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it. (*Lynch, supra*, 3 Cal.5th at p. 475.)

Quach v. California Commerce Club, Inc. (2024) 16 Cal 5th 562, 584.

Plaintiff has presented evidence that she does not recall signing the agreement and did not have a copy in her possession before Defendant produced it in discovery on June 5, 2026. *Plaintiff Dec.* ¶ 4. Plaintiff had served Request for Production, Set One on September 24, 2025 and Defendant provided a written response on October 28, 2025. *Kaldas Dec.* ¶ 4-5. In reviewing Request for Production, Set One, the Court notes that Request for Production No. 3 seeks Plaintiff’s complete personnel file. Therefore, the agreement should have been produced. The Court further notes that when Plaintiff reached out on June 2, 2026 asking for Defendant to supplement, No. 3 was not included. *Kaldas Dec.* ¶ 6.

Before the Court is a situation in which Defendant should have produced the agreement nearly ten months ago. Instead, Defendant failed to provide the agreement. Plaintiff has provided evidence that she was not aware of the agreement until it was produced on June 5, 2026. Defendant has provided no evidence to dispute Plaintiff’s lack of knowledge of the agreement. Defendant has provided no evidence that Plaintiff was provided a copy of the agreement after signing. The Court will not consider any actions taken prior to June 5, 2026 when evaluating whether Plaintiff has waived her right to compel arbitration because that is the earliest date during the pendency of this case that Plaintiff was aware of the agreement. After June 5, 2026, Plaintiff filed a Motion for Leave to File First Amended Complaint that was objected to by Defendant for being improperly noticed. On July 13, 2026, the Court denied the motion without prejudice due to notice issues. Also after June 5, 2026, Plaintiff’s Counsel filed a declaration on June 23, 2026. In this declaration, counsel noted that an arbitration agreement had been produced and that Plaintiff intended to file a petition to compel arbitration as to her individual wage and hour claims. Plaintiff’s Counsel also noted that he had recently become aware of a class action against Defendant that Plaintiff was able to opt out of.

A single motion for leave to amend and the declaration do not amount to a waiver of the right to compel

arbitration. As the moving party, Defendant must prove waiver by clear and convincing evidence. Defendant has not met this burden and the Court will not find waiver.

Next, Defendant argues that Plaintiff is exempt from the FAA under 9 U.S.C. § 1 which reads,

“Maritime transactions”, as herein defined, means charter parties, bills of lading of water carriers, agreements relating to wharfage, supplies furnished vessels or repairs to vessels, collisions, or any other matters in foreign commerce which, if the subject of controversy, would be embraced within admiralty jurisdiction; “commerce”, as herein defined, means commerce among the several States or with foreign nations, or in any Territory of the United States or in the District of Columbia, or between any such Territory and another, or between any such Territory and any State or foreign nation, or between the District of Columbia and any State or Territory or foreign nation, but nothing herein contained shall apply to contracts of employment of seamen, railroad employees, or any other class of workers engaged in foreign or interstate commerce.

9 U.S.C. § 1.

Defendant has presented evidence that Defendant’s business involves road construction and related jobs throughout California, Northern Nevada, and Southern Oregon, that Plaintiff drove a dump truck hauling materials for mostly public works projects for Caltrans, and on some occasions, drove from California to another state to perform her job. *Dec. Hutchings* ¶ 4-6.

The agreement at issue is governed by the Federal Arbitration Act per ¶ 9 of the agreement itself. As the opposing party, Defendant shoulders the burden of demonstrating whether an exemption to the FAA applies. *Betancourt v. Transportation Brokerage Specialists, Inc.* (2021) 62 Cal. App. 5th 552, 559. Based on the evidence provided by both parties, it is clear that Plaintiff was not a seaman or railroad employee. Therefore, the Court analyzes whether Plaintiff is in a “class of workers engaged in foreign or interstate commerce.” This category is limited to “transportation workers” engaged in foreign or interstate commerce. *Vela v. Harbor Rail Service of California, Inc.* (2026) 120 Cal. App. 5th 353, 363, quoting *Circuit City Stores, Inc. v. Adams* (2001) 532 U.S. 105, 109. There is a two-step framework. First is to define the relevant class of workers to which the employee belongs with the determination being based on the actual work activity of the employee specifically and the work that was, as a whole, typically carried out. *Doss v. Tesla, Inc.* (2026) 121 Cal. App. 5th 81. The only evidence before the Court regarding the exemption is the Declaration of Weston Hutchings and portion of Plaintiff’s deposition. Defendant and its employees primary performed construction on public works projects. *Dec. Hutchings* ¶ 5. During the time Plaintiff worked for Defendant, she drove a dump truck hauling materials from various locations on mostly public works projects for Caltrans. *Id.* ¶ 6. Defendant provided evidence that Plaintiff drove to and from Nevada in August and September of 2023, but it is unclear is this was once, daily, weekly, etc. *Id.* ¶ 7. Plaintiff again worked a Caltrans job between April 4, 2023 and June 13, 2023 in which Plaintiff and other drives hauled materials from Nevada to California. *Id.* ¶ 8. It is again unclear how often this was. Plaintiff testified that the of the locations she’d go down to was Nevada. *Plaintiffs’ depo.*, p. 22, ln. 24.

The second step is to determine whether the class of workers is engaged in foreign or interstate commerce. *Southwest Airlines v. Saxon* (2022) 596 U.S. 450. In making this determination, the Supreme Court wrote:

§1 exempted only contracts with transportation workers, rather than all employees, from the FAA. See *id.*, at 119, 121 S. Ct. 1302, 149 L. Ed. 2d 234. And, while we did not provide a complete definition of “transportation worker,” we indicated that any such worker must at least play a direct and “necessary role in the free flow of goods” across borders. *Id.*, at 121, 121 S. Ct. 1302, 149 L. Ed. 2d 234. Put another way, transportation workers must be actively “engaged in transportation”

of those goods across borders via the channels of foreign or interstate commerce. *Ibid.*
Id. at 458.

Whether Plaintiff and her coworkers were actively engaged in transportation of goods across the border is a question not answered by Defendant's evidence. Defendant has provided evidence of, at best, infrequent crossing into Nevada. Defendant did not adequately address infrequent crossings of the border. While not controlling, this has been addressed in the Third Circuit where an Uber driver argued that Uber drivers were transportation workers exempt from the FAA.

Singh emphasizes a single sentence—the Court's statement that "any class of workers directly involved in transporting goods across state or international borders falls within § 1's exemption." *Saxon*, 142 S. Ct. at 1789. As the rest of the opinion makes clear, this does not mean that rare border crossings are enough to make interstate transportation central to a class of workers' job description. Rather, we consider the "actual work" that class members "typically carry out." *Id.* at 1788. Incidental border crossings are insufficient if a class of workers is not typically involved with the channels of interstate commerce. *Wallace*, 970 F.3d at 800 ("[S]omeone whose occupation is not defined by its engagement in interstate commerce does not qualify for the exemption just because she occasionally performs that kind of work."); *Waithaka*, 966 F.3d at 25 (noting that crossing state lines is not the "touchstone of the exemption's test").

Singh v. Uber Techs, Inc. (2023) 67 F. 4th 550, 559.

Defendant has simply failed to meet its burden of showing that Plaintiff is exempt from the FAA. The evidence shows that Plaintiff was a truck driver who hauled materials for construction of roads or highways in California and only occasionally crossed the border to obtain such materials. Occasional work is insufficient. Merely hauling materials that are used to build roads or highways that can be driven on to leave the state or support interstate commerce is also too attenuated and Defendant provided insufficient support for any argument in that regard.

Plaintiff's Motion to Compel Arbitration is **GRANTED**. The matter is stayed pending arbitration and all currently pending hearing dates are vacated. The matter will be on calendar on **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for review regarding status of arbitration. The parties are ordered to file either a joint or separate status statements no less than five court days prior to the hearing. Plaintiff provided a proposed Order, however it will be modified as Plaintiff listed the American Arbitration Association when the agreement calls for arbitration through JAMS.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien seek admission pro hac vice in order to represent Defendant Medtronic, Inc. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application. One of the requirements is that the application is required to be served "on all parties who have appeared in the cause." CRC 9.40(c)(1). The accompanying proofs of service indicate service on the former counsel of Defendants Brian Davis, PA, Foundation Physicians Medical Group, and Bradley Jones, MD. The Applications were filed on July 21, 2026. Substitutions of attorney for these Defendants' subbing in new counsel were filed on July 2, 2026, and July 10, 2026, prior to service of the Applications. The Applications are **DENIED** without prejudice for failure to serve in compliance with CRC 9.40.

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer (by Defendant County of Shasta): Defendant County of Shasta demurs to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Dominick Hurley provides evidence of sufficient meet and confer efforts.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The County demurs to the Second Cause of Action for violation of the Confidentiality of Medical Information Act (CMIA), the Third Cause of Action for dependent adult abuse and neglect, the Fourth Cause of Action for negligence, the Seventh Cause of Action for disability discrimination and failure to provide reasonable accommodation, and the Ninth Cause of action for declaratory and injunctive relief. The County demurs on the grounds that the Third, Fourth, and Seventh Causes of Action are precluded by the County’s immunity from liability, the Fourth Cause of action as improperly pled, and on all causes of action for failure to state facts sufficient to constitute a cause of action.

Fourth Cause of Action for Negligence. The Fourth Cause of Action for negligence is a new cause of action not previously raised in the original Complaint or First Amended Complaint. “The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023. Plaintiff does not dispute that leave of court to include the negligence cause of action was not previously obtained. As such, its addition is inappropriate and the Fourth Cause of Action is hereby **STRICKEN**. Plaintiff is required to file a separate motion to properly request permission to include a negligence cause of action.

Immunity. Defendant demurrers on the Third, Fourth, and Seventh Causes of Action on the grounds that they are immune from liability. The grounds of immunity were not previously raised in the County’s first demurrer. “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” CCP § 430.40(b). “If the party against whom a complaint or cross-complaint has been filed fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action.” CCP § 430.80(a). Here, the County’s first demurrer was sustained as to these causes of action.

This matter was originally set for hearing on August 3, 2026, and was continued regarding the applicability of

CCP § 430.40(b) to the grounds of immunity on demurrer. The parties were directed to brief the issue no later than August 14, 2026. The Court notes there was a typographical error in the Court's tentative ruling dated August 3, 2026, which requests briefing regarding the applicability of CCP § 430.10(b). This was in error. The County did not provide further briefing. Plaintiff provided briefing but addressed the applicability of CCP § 430.10(b), not CCP § 430.40(b). The Court finds this typographical error does not prejudice the parties, as the correct section was referred to throughout the tentative ruling adopted by the Court and does not change the outcome of the demurrer.

Pursuant to CCP § 430.40(b), the County is precluded from raising the grounds of immunity on a subsequent demurrer because it was not raised in the first demurrer. The demurrer is **OVERRULED** on the ground of immunity.

Second Cause of Action for Violation of the Confidentiality Medical Information Act. The County demurs to the Second Cause of Action for failure to state facts sufficient to constitute a cause of action. The County argues, and Plaintiff does not dispute, that the County merely requesting medical records is not a violation of the CMIA. Additionally, the County argues that the Second Amended Complaint fails to provide details regarding the violation.

The CMIA “is intended to protect the confidentiality of individually identifiable medical information obtained from a patient by a health care provider, while at the same time setting forth limited circumstances in which the release of such information to specified entities or individuals is permissible.” *Loder v. City of Glendale* (1997) 14 Cal.4th 846, 859. The CMIA is codified as Civ. Code § 56.10. Section (a) states that “[a] provider of health care, health care service plan, or contractor shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization, except as provided in subdivision (b) or (c).” “[I]n order to violate the act, a provider of health care must make an unauthorized, unexcused disclosure of privileged medical information. A provider is relieved from liability under the act if it can show that the disclosure is excepted either by the mandatory (§ 56.10, subd. (b)) or permissive (§ 56.10(c)(4)) provisions of the act, allowing disclosure of medical information under specified circumstances.” *Heller v. Norcal Mutual Ins. Co.* (1994) 8 Cal.4th 30, 38.

The Second Amended Complaint makes several allegations not applicable to a CMIA violation, including claims of unlawful procurement of medical information. This does not constitute a violation of the CMIA. However the Second Amended Complaint also alleges that (1) the County failed to implement, follow, or enforce procedures reasonably designed to safeguard Plaintiff's medical information against unauthorized access, disclosure, or use; (2) in responding to post-incident requests and proceedings the County disclosed or transmitted medical records containing Plaintiff's confidential medical information without CMIA compliant review, redaction, or safeguards; (3) and the disclosures were made without authorization. The County does not contend that an exception applies to the alleged disclosures. The Court finds the Second Cause of Action is sufficiently pled and the demurrer is **OVERRULED** on the grounds that it fails to state facts sufficient to constitute a cause of action.

Third Cause of Action for Dependent Adult Abuse and Neglect. The County demurs to the Third Cause of Action on the grounds that it is not a “care custodian” for the purposes of a claim under the Elder Abuse and Dependent Adult Civil Protection Act (EADACPA) and for failure to state facts sufficient to constitute a cause of action. The grounds that the County is not a “care custodian” for the purposes of a claim under the EADACPA was not raised in the first demurrer. For the same reasons stated above regarding CCP § 430.40(b), the argument is precluded from being raised on a subsequent demurrer.

The County argues that the Second Amended Complaint lacks facts sufficient to show “neglect” within the meaning of W&I § 15610.57, or “reckless, oppression, fraud, or malice, sufficient to warrant an enhanced remedy provided by W&I § 15657. The County further argues that the Second Amended Complaint fails to provide what

mobility assistance was requested, required, or provided.

Under W&I § 15610.57(a), “[n]eglect” means either of the following: (1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise. (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.” (b) Neglect includes, but is not limited to, all of the following:... (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment. (3) Failure to protect from health and safety hazards...” W&I § 15610.57(b).

The Second Amended Complaint alleges that (1) the County is a care custodian; (2) that Plaintiff is a dependent adult; and (3) the County failed “to provide medical care for physical and mental health needs and failure[d] to protect Plaintiff from health and safety hazards. Negligence is sufficiently pled.

W&I § 15657 provides for heightened remedies “[i]f it is proven by clear and convincing evidence, or by a preponderance of the evidence pursuant to Section 15657.02, that a defendant is liable for physical abuse as defined in Section 15610.63, neglect as defined in Section 15610.57, or abandonment as defined in Section 15610.05, and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse.”

As stated above, negligence under W&I § 15610.57 has been sufficiently pled. The Second Amended Complaint also alleges that “Defendants acted with recklessness, oppression, fraud, or malice, including by consciously disregarding Plaintiff’s known life-threatening condition and custodial dependency.” Evidence of Defendant’s conduct is not required at the pleading stage, therefore the Second Amended Complaint sufficiently pleads heightened remedies under W&I § 15657.

Additionally, the County argues that the Second Amended Complaint fails to state what mobility assistance was requested, required, or provided. The Second Amended Complaint alleges that Plaintiff requested mobility accommodations on several occasions and that the County “refused”, “denied” or “ignored” the requests. Heightened specificity regarding the content of the requests is not required at the pleading stage, therefore the Second Amended Complaint sufficiently alleges a failure to provide mobility assistance.

The demurrer is **OVERRULED** on the Third Cause of Action for failure to state facts sufficient to constitute a cause of action.

Seventh Cause of Action for Disability Discrimination and Failure to Provide Reasonable Accommodation. The County demurs to the Seventh Cause of Action for failure to state facts sufficient to constitute a cause of action under Gov. Code § 11135 and Civ. Code § 54.1.

Under Gov. Code § 11135:

“No person in the State of California shall, on the basis of sex, race, color, religion, ancestry, national origin, ethnic group identification, age, mental disability, physical disability, medical condition, genetic information, marital status, or sexual orientation, be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state or by any state agency, is funded directly by the state, or receives any financial assistance from the state.”

Here, the Second Amended Complaint alleges that (1) Plaintiff is a person with a disability within the meaning of Gov. Code § 11135; (2) the County is a public entity that received state financial assistance; and (3) Plaintiff

was denied equal access to services on the basis of his disability. The Court finds a cause of action under Gov. Code § 11135 is sufficiently pled.

In relevant part, Civ. Code § 54.1 provides that:

“Individuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals, clinics, and physicians’ offices, and privileges of all common carriers, airplanes, motor vehicles, railroad trains, motorbuses, streetcars, boats, or any other public conveyances or modes of transportation (whether private, public, franchised, licensed, contracted, or otherwise provided), telephone facilities, adoption agencies, private schools, hotels, lodging places, places of public accommodation, amusement, or resort, and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.”

While the Second Amended Complaint alleges that Plaintiff is a person with a disability and that he was denied equal access to services based on his disability, it fails to allege that Plaintiff was denied full and equal access to a place in which the general public is invited. A jail is not specifically listed as a qualifying location and is not a place in which the general public is invited. The Court finds the Second Amended Complaint fails to sufficiently plead a cause of action under Civ. Code § 54.1.

Considering Plaintiff has sufficiently pled a disability discrimination claim under Gov. Code § 11135, the demurrer is **OVERRULED** as to the Seventh Cause of Action.

Ninth Cause of Action for declaratory and injunctive relief. The County demurs to the Ninth Cause of Action for failure to state facts sufficient to constitute a cause of action and on the basis that no viable cause of action exists to warrant injunctive relief.

The County argues that the Second Amended Complaint fails to allege what legal rights the use or retention of Plaintiff’s records violated and that there is no controversy. “A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410. “The “actual controversy” requirement concerns the existence of *present* controversy relating to the legal rights and duties of the respective parties pursuant to contract (Code Civ. Proc., § 1060), statute or order.” *Id.*

While the Second Amended Complaint alleges that the County violated Plaintiff’s rights under the CMIA, it fails to allege what rights of Plaintiff are being violated related to the relief requested in the Ninth Cause of Action. Additionally, a present controversy has not been alleged. Plaintiff has provided facts regarding the County’s alleged past conduct concerning his medical records but makes no allegations that the County is presently utilizing the records in violation of Plaintiff’s rights. The Court finds the request for declaratory relief has not been sufficiently pled.

Additionally, the County argues that Plaintiff has failed to assert a cause of action against the County therefore injunctive relief is not an available remedy. Considering the court has overruled the demurrer as stated above, the causes of action survive and injunctive relief as a remedy may be available.

The Court notes that in regard to the Ninth Cause of Action, the County argues that the demurrer should be sustained as to Plaintiff Heather Phillips’ medical records because they are not at issue. The Ninth Cause of Action in the Second Amended Complaint only pertains to Plaintiff Frederick Phillips, therefore the argument is moot.

The demurrer as to the Ninth Cause of Action is **OVERRULED** as to the claims for injunctive relief and **SUSTAINED** as to the claims for declaratory relief for failure to state facts sufficient to a cause of action.

In summary, the Demurrer is **OVERRULED** as to the Second, Third, and Seventh Causes of Action on all grounds. The Demurrer regarding the Ninth Cause of Action is **OVERRULED** as to the injunctive relief claims and **SUSTAINED** with leave to amend as to the declaratory relief claims. The Fourth Cause of Action for Negligence is **STRICKEN** as improperly included in the Second Amended Complaint without leave of Court. Plaintiffs are to file a Third Amended Complaint within ten (10) calendar days from today. Defendant's response is due pursuant to statute. The County is to prepare an Order consistent with the Court's ruling.

Tentative Ruling on Demurrer (by Defendant City of Redding): Defendants City of Redding, Bryan Cowan, Cameron Hooks, Devin Ketel, Chad Manley, Ben Omey, Jacob Ruiz, and Byron Upshaw demur to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the Demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Tracey A. Werner provides evidence of sufficient meet and confer efforts.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The City demurs to the Ninth Cause of Action and only cause of action against the City for declaratory and injunctive relief on the grounds that it fails to state a claim and is ambiguous and unclear.

Failure to state a claim. CCP § 1060 allows a party seeking a declaration of his or her rights or duties with respect to another, in cases of actual controversy relating to the legal rights and duties, to bring a complaint for a declaration of rights. "A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410. "The "actual controversy" requirement concerns the existence of *present* controversy relating to the legal rights and duties of the respective parties pursuant to contract (Code Civ. Proc., § 1060), statute or order." *Id.* The Second Amended Complaint alleges that the City has violated Plaintiff's rights under Pen. Code § 851.92 and 851.93 and breached its obligations under Gov. Code § 12525.2.

Pen. Code § 851.92 applies when an arrest record is sealed pursuant to Sections 851.87, 851.90, 851.91, 1000.4, and 1001.9 and covers arrest records, police investigation reports, and court records. Arrest record is defined as "information about the arrest or detention that is contained in either of the following: (A) The master, or a copy of the master, local summary criminal history information, as defined in subdivision (a) of Section 13300. (B) The master, or a copy of the master, state summary criminal history information as defined in subparagraph (A) of paragraph (2) of subdivision (a) of Section 11105." Pen. Code § 851.92(d). The Second Amended Complaint and opposition both allege the existence of a court order for "sealing" after dismissal of the criminal proceedings and the continued dissemination of government-controlled body-worn camera footage and related arrest materials.

While body-worn camera footage is not a covered record under Pen. Code § 851.92, other “related arrest materials” could be. Neither a copy of the sealing order nor detailed information about the “related arrest material” has been provided, so it is unclear what information is covered by the sealing order and whether it pertains to other “related arrest materials.” However, a claim under Pen. Code § 851.92 has been sufficiently alleged at the pleading stage.

Pen Code § 851.93 relates to arrest record relief through review by the Department of Justice. Therefore this section does not apply to the City. Gov. Code § 12525.2 requires each law enforcement agency to furnish information to the Department of Justice related to all instances when a peace officer is involved in particular incidents. “A violation of a state statute does not automatically give rise to a right of recovery by a private individual. Courts will allow a private right of action only where a statute allows one.” *Lagrisola v. North American Financial Corp.* (2023) 96 Cal.App.5th 1178, 1196. Here, the statute does not confer a right to allege a private cause of action and does not apply.

The Second Amended Complaint sufficiently alleges an actual controversy supported by the opposition. Both allege that the City continues to disseminate arrest related information. This creates a present controversy since the dissemination is allegedly ongoing.

The Second Amended Complaint sufficiently alleges a claim under Pen. Code § 851.92 and there is an actual controversy. The demurrer is **OVERRULED** on the grounds that the Ninth Cause of Action fails to state a claim.

Ambiguity and uncertainty. The City also demurs on the grounds that it is unclear what declaratory or injunctive relief Plaintiff seeks regarding the City. The Second Amended Complaint is not unclear and specifically states that Plaintiffs seek a declaration regarding “whether the City may continue to maintain, publish, or otherwise disseminate government-controlled body-worn camera footage and related arrest materials that disclose Plaintiff’s confidential medical information, disability status, and treatment needs without redaction or limitation after the related criminal matter was dismissed and sealed.” The Second Amended Complaint also seeks a declaration regarding the City’s obligations under Gov. Code § 12525.2 to “accurately report qualifying use-of-force incidents and the statutorily required data fields.” Additionally, the Second Amended Complaint requests injunctive relief by requiring the City to remove any government-controlled arrested related audiovisual materials covered by the criminal matter sealing order and statutes. While these requests may or may not have merit, they are not ambiguous.

The demurrer is **OVERRULED** on the grounds that the Ninth Cause of action is ambiguous and uncertain.

In summary, the Demurrer is **OVERRULED** as to the Ninth Cause of Action. The City has submitted a proposed order that will be modified to reflect the Court’s ruling.

Tentative Ruling on Demurrer (by Defendant Prime Healthcare Services and SRMC): Defendants Prime Healthcare Services- Shasta LLC dba Shasta Regional Medical Center (“SRMC”) and Prime Healthcare Services, Inc. (collectively “Defendants”) demur to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The initial declaration of John MacRill III provides evidence of sufficient meet and confer efforts. However, Plaintiffs’ declaration and a subsequent declaration filed by John MacRill III indicate that the parties failed to meet and confer on the demurrer to the First Cause of Action prior to the filing of the demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendants demur to the First Cause of Action for battery, the Third Cause of Action for dependent adult abuse and neglect, and the Sixth Cause of Action for disability discrimination and failure to provide reasonable accommodation. The grounds for Defendants’ demurrer are that the First, Third, and Sixth Causes of Action for failure to state facts sufficient to constitute a cause of action and are uncertain. Additionally, Defendants demur to the Third Cause of Action on the grounds that the cause of action exceeds the scope of the Court’s order sustaining Defendants’ demurrer with leave to amend to Plaintiffs’ First Amended Complaint.

First Cause of Action for Battery. “The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” *So v. Shin* (2013) 212 Cal.App.4th 652, 668.

The Second Amended Complaint alleges that (1) “Defendant SRMC Security Doe intentionally touched plaintiff by grabbing/ pushing him causing him to lose balance and fall into a chair,” “applied unwanted force... by pushing him to walk faster than he was able to walk without mobility accommodation,” and “applied unwanted force by grabbing and slamming Plaintiff down into his chair;” (2) that the physical contact was without consent; (3) that Plaintiff was caused pain, distress, and humiliation and further injury to his wrist and hip. The Second Amended Complaint fails to allege that Defendant SRMC Security Doe acted with the requisite intent to harm or offend Plaintiff or that a reasonable person in Plaintiff’s position would have been offended by the contact. Plaintiff argues that malintent may be inferred under the circumstances. However all required elements must be pled to maintain a claim for battery.

Additionally, Defendants argue that the Second Amended Complaint is uncertain regarding SRMC’s role in the alleged battery. Plaintiff alleges that Defendant SRMC Security Doe was an employee, agent, servant, and/or security personnel acting on behalf of Defendant Prime, and that therefore Defendants are liable for the conduct under a theory of respondeat superior. The role of Defendants in the claim is not ambiguous. Plaintiff has alleged Defendants’ role in the action as the employer of SRMC Security Doe.

The opposition demonstrates that Plaintiff may be able to cure the issues raised above. The demurrer as to the First Cause of Action is **SUSTAINED** with leave to amend regarding whether the SRMC security Doe acted with the requisite intent to harm or offend Plaintiff and whether a reasonable person in Plaintiff’s position would have been offended by the contact.

Third Cause of Action for Dependent Adult Abuse and Neglect. The Third Cause of Action is a new claim not previously raised against Defendants in the original Complaint or First Amended Complaint. Defendants contend that this addition exceeds the scope of the leave to amend granted in the Court’s ruling on the previous demurrer. “The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023. The first demurrer was sustained with leave to amend but did not authorize Plaintiffs to add a new cause of action against Defendants. Plaintiffs did not obtain prior

authorization, therefore the demurrer is **SUSTAINED** without leave to amend.

Sixth Cause of Action for Disability Discrimination and Failure to Provide Reasonable Accommodation. Defendants allege it is unclear what is being alleged against them because it is based on three Civil Codes (Civ. Code § 51, 52, and 54.1) and does not separate them out. Civ. Code § 51, also known as the Unruh Civil rights Act, prohibits discrimination based sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, ensures “full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” Civ. Code § 52 imposes liability for violations of Civ. Code § 51. Therefore, it is not necessary to plead Civ. Code § 51 and § 52 as two separate claims.

Defendants also argue that the Sixth Cause of Action fails to state facts sufficient to constitute a cause of action. “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff’s protected status.” *Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922. Civ. Code § 54 adds that “[i]ndividuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals, ... and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.”

The Second Amended Complaint alleges (1) Defendant Prime Healthcare Services, Inc. operates SRMC, and that SRMC is a licensed hospital and healthcare facility; (2) that Plaintiff requested reasonable accommodation for his disability; (3) Defendants failed to provide the requested accommodation, and (4) that Defendants’ conduct “discriminated against Plaintiff on the basis of disability by denying him access to full and equal services at SRMC in violation of Civ. Code sections 51 and 54.1.”

Civ. Code § 54.1 is part of the Disabled Persons Act and provides that “[i]ndividuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.” Civ. Code § 54.1(a). Much like Civ. Code § 52, Civ. Code § 54.3 imposes liability for a violation of Civ. Code § 54.1, and states that “any person or persons, firm or corporation who denies or interferes with admittance to or enjoyment of the public facilities as specified in Sections 54 and 54.1 or otherwise interferes with the rights of an individual with a disability under Sections 54, 54.1 and 54.2 is liable for each offense.” There is no requirement that a Plaintiff plead intentional discrimination, just interference with the rights of an individual with a disability. As explained above, the Second Amended Complaint alleges Defendants denied him full access and equal services based on his disability. The claim is sufficiently pled under Civ. Code § 54.1.

The demurrer is **OVERRULED** as to the claims under Civ. Code § 54.1 under the Sixth Cause of Action.

In summary, the Demurrer is **OVERRULED** as to the Sixth Cause of Action. The Demurrer regarding the First Cause of Action is **SUSTAINED** with leave to amend. The Demurrer is **SUSTAINED** without leave to amend as to the Third Cause of Action.

Plaintiffs are to file a Third Amended Complaint within ten (10) calendar days from today. Defendant’s response is due pursuant to statute. Defendants are to prepare an Order consistent with the Court’s ruling.

Tentative Ruling on Motion to Strike (by Prime Healthcare Services, Inc. and SRMC): Defendant Prime Healthcare Services – Shasta, LLC dba Shasta Regional Medical Center moves to strike portions of the First Amended Complaint (FAC) filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs

oppose the motion.

Meet and Confer. The Court finds that Defendant has provided sufficient evidence of meet and confer evidence prior filing the motion.

Merits. The Court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

CCP § 436

A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” CCP § 437(a).

Added Defendants. Defendants request that the added defendants, Debra Miguel R.N. and Amacio Rogan R.N. be stricken from the Second Amended Complaint due to Plaintiff’s failure to receive prior permission from the Court. The Court previously sustained Defendants’ demurrer to the First Amended Complaint with leave to amend, but this permission did not include the ability to make Doe substitutions. Plaintiffs need to follow the proper procedure to effect Doe substitutions. The request to strike defendants Debra Miguel R.N. and Amacio Rogan R.N. is **GRANTED**.

Punitive damages. Defendants seek to strike the prayer for relief for punitive damages against Defendants from the Second Amended Complaint. As noted in the Court’s ruling on Defendant’s demurrer to the First Amended Complaint, Plaintiffs cannot seek punitive damages against Defendants without first complying with CCP § 425.13, which requires court permission to plead punitive damages alleging professional negligence against a healthcare provider upon a showing that there is a substantial likelihood of succeeding on the claim. Plaintiffs have not sought leave of court to demonstrate a substantial probability that they will prevail on the claim. The Court previously struck punitive damages for failure to comply with CCP § 425.13. The request to strike the prayer for relief for punitive damages is, once again, **GRANTED**.

Attorney’s fees. Defendants argue that attorney’s fees are only permitted by statute and, because Plaintiffs failed to state a sufficient cause of action that permits attorney’s fees, the request should be stricken. Plaintiffs’ prayer for relief for attorney’s fees relates to the cause of action for dependent adult abuse. As stated in the Court’s tentative ruling on Defendant’s demurrer to the Second Amended Complaint, Plaintiffs have failed to state a valid cause of action for dependent adult abuse. However, the Court’s tentative ruling on Defendant’s prior motion to strike pointed out that the cause of action for disability discrimination is the only claim that could possibly provide for attorney’s fees. As discussed in the Court’s tentative ruling on Defendants’ demurrer to the Second Amended Complaint, the Court is overruling the demurrer as to the disability discrimination claim. Therefore, the motion to strike attorney’s fees is **DENIED**.

Remaining requests. Defendants further seek to strike the following selections from the Second Amended Complaint:

1. Page 22 ¶ 215; “Defendants acted with recklessness, oppression, fraud, or malice including consciously disregarding Plaintiff’s known life-threatening condition and custodial dependency.” This paragraph is specific to the cause of action against the County. Considering the County’s demurrer to the Third Cause of Action was overruled, the request to strike is **DENIED**.

2. Page 24 ¶ 231; “Defendants acted with recklessness, oppression, fraud, or malice, including by consciously disregarding Plaintiff’s known hemophilia, mobility impairment, hygiene needs, and medical vulnerability.” The demurrer to the Third Cause of Action was sustained without leave to amend, therefore the request to strike this section is **GRANTED** without leave to amend.
3. Page 24 ¶ 233; “Plaintiff is entitled to compensatory damages according to proof and to enhanced remedies under Welfare and Institutions Code § 15657, including attorney’s fees and costs, as permitted by law.” Compensatory damages under W&I §15657 relate to the cause of action for dependent adult abuse. As stated above, the demurrer to this cause of action is sustained without leave to amend so the request to strike is **GRANTED** without leave to amend.
4. Page 24 ¶ 234; “Plaintiff is entitled to [punitive] damages against individual Defendants where permitted by law.” As stated above, the request for punitive damage is stricken. Therefore the request to strike this section is also **GRANTED** without leave to amend.
5. Page 34 ¶ 308(b); “For statutory damages and enhanced remedies as available by law, including:… b. against Defendants Prime Healthcare Services, Inc., Prime Healthcare Services- Shasta, LLC dba Shasta Regional Medical Center, Dr. Lloyd Peña, Dr. Garcia, Debra Miguel, R.N., Amacio Rogan, R.N., and Doe medical defendants on the claims arising under Civil Code sections 51, 52, 54.1, 56, et. seq. and Welfare and Institutions Code section 15657, to the extent permitted by law.”-

As explained above, the request to strike the references to Debra Miguel R.N., and Amacio Rogan R.N. is **GRANTED** with leave to amend.

The request to strike the reference to W&I Code § 15657 is also **GRANTED** with prejudice considering the dependent adult abuse claim is sustained without leave to amend.

The request to strike the references to Civ. Code § 51, 52, and 56 is **GRANTED** without leave to amend because Plaintiffs failed to sufficiently plead a valid cause of action against Defendants under these sections.

The remaining request to strike the reference to statutory damages and enhanced remedies under Civ. Code § 54.1 is **DENIED** because Plaintiffs have sufficiently pled a cause of action under this section.

6. Page 35 ¶ 309; “For punitive damages against individual Defendants where permitted by law.”- As stated above, the request for punitive damage is stricken with prejudice, therefore the request to strike this section is also **GRANTED** without leave to amend
7. Page 36 ¶ 314; “For attorney’s fees and costs where authorized by statute or other law.”- As explained above, the demurrer to the Sixth Cause of Action is overruled, therefore the request to strike is **DENIED**.

The motion is **GRANTED** in part and **DENIED** in part as outlined above. Defendants are to prepare an Order consistent with the Court’s ruling.

WARD, ET AL. VS. LEVINDOFSKE, ET AL.

CASE NUMBER: 25CV-0207586

Tentative Ruling on Motion to Strike: Defendants Sierra Pacific Industries, Inc. and Austin Michael Levindofske move to strike portions of the First Amended Complaint (FAC) relating to Plaintiff’s allegations in support of punitive and exemplary damages in paragraphs 2, 33-35, 36, as well as the associated prayer for relief.

Timeliness of Motion: Plaintiffs object that the motion is untimely. Defendants' deadline to file a responsive pleading to the FAC was June 15, 2026. On that date, Defendants filed a Declaration of Stephen Heath invoking the 30-day extension available under CCP 435.5(a)(2) when a party attempted, but failed, to meet and confer prior to filing a motion to strike. The Heath Declaration admits that no meet and confer occurred prior to filing. Plaintiff argues that this Motion should be denied or stricken on this basis. The Court declines to strike the Motion on the grounds of untimeliness in the interest of adjudicating the matter on the merits. Plaintiff will not be prejudiced by the Court's consideration of the Motion in this instance as detailed below.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Charles Shartle indicates that Defendant did not satisfy the meet and confer requirement prior to filing this motion. CCP 435.5(a)(4) provides that an insufficient meet and confer process shall not be grounds to grant or deny a motion to strike. Therefore, the Court elects to reach the merits as it will not prejudice Plaintiff in this instance, rather than continuing the hearing to require meet and confer.

Requests for Judicial Notice: Plaintiff requests the Court take judicial notice of the Complaint, the First Amended Complaint, and the Declaration of Stephen Heath to extend responsive pleading to the FAC. The requests are granted.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. (Code Civ. Proc., § 437(a).

Plaintiff's First Amended Complaint alleges a single cause of action for Loss of Consortium. Plaintiff Jeff Ward brings the action as a result of injuries sustained by his wife Amarie Ward in an auto accident. Amarie Ward has resolved her claims against Defendants. Defendant moves to strike portions of Plaintiffs' FAC which alleges grounds for punitive and exemplary damages as well as the prayer for relief regarding same. Defendant argues that the allegations do not meet the legal threshold required and should therefore be stricken.

Civil Code 3294(b) provides an employer is liable for punitive damages when they have advance knowledge of the unfitness of the employee, and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded. *See also College Hospital Inc. v. Superior Court* (1994) 8 Cal. 4th 704.

Here, the FAC alleges both advance knowledge and later ratification of the wrongful conduct. The FAC alleges that SPI had advance knowledge of Levindofske's unfitness and employed him with conscious disregard of the rights and safety of others, and that through the exercise of reasonable care in hiring, screening, retention, training and supervisory processes, SPI knew or should have known that Levindofske was unfit or incompetent to safely operate a commercial tractor-trailer. (FAC ¶ 35)

The FAC alleges Levindofske was under the influence of drugs or alcohol at the time of the collision and was on the phone with his girlfriend while speeding through a construction zone at the time of the accident. (FAC ¶ 32) The FAC further alleges that SPI ratified this conduct by failing to follow their policies and procedures requiring drug and alcohol testing of any employee-driver involved in a work-related collision within 24 hours of the collision. (FAC ¶ 34) The FAC alleges that SPI's managing agents deliberately failed and refused to test Levindofske and demonstrates conscious disregard for the rights and safety of Plaintiffs and the general public. (FAC ¶ 34)

The Court finds that these allegations are sufficient to state a claim for punitive damages. Defendants' Motion to Strike is **DENIED**. The proposed order will be modified.

9:00 a.m. – Review Hearings

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

This matter is on calendar for a trial setting conference. The Court designates this as a Plan III case and intends to set the matter for trial no later than January 20, 2027. Defendants have posted jury fees. Plaintiff has a fee waiver on file, however the Order Granting Fee Waiver filed January 24, 2025, does not include jury fees and expenses (Item 4.a.(2)). Plaintiff is granted ten days leave to post jury fees or obtain a fee waiver. A failure to post jury fees or obtain a fee waiver in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

CAVALRY SPV I, LLC VS. DORSEY

CASE NUMBER: 24CVG-01994

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on March 4, 2026 indicating the matter would be dismissed no later than October 27, 2026. The matter is continued to **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on December 21, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the December 24, 2026 hearing. **No appearance is necessary on today's calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of dismissal. Notice of Settlement was filed on August 18, 2025. Today's hearing is the third time that the matter has been on calendar awaiting a CCP § 664.6 dismissal. Plaintiff has filed a nearly identical declaration each time seeking an additional 90 days to obtain signatures with no detail regarding the delay. The Court will issue an Order to Show Cause Re: Sanctions to Plaintiff and counsel for failure to comply with the Court's Order dated May 26, 2026 which ordered the parties to take necessary steps to close the court file, failure to timely enter default per CRC 3.740(f), and failure to timely prosecute. The Order to Show Cause Re: Sanctions will be on calendar on **Monday, November 23, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. **No appearance is necessary on today's calendar.**

DAY VS. DAY

CASE NUMBER: 23CV-0203736

This matter is on calendar for review regarding status of the case and potential appointment of a referee. On June 22, 2026, the Court set the fair market value of the property at issue. The clerk sent the notice required per CCP § 874.317 to all co-tenants on July 27, 2026. A cotenant has 45 days from the date of the notice to give notice to the Court that it elects to buy all the interest of the cotenants that requested partition by sale. CCP § 874.317(b). The 45 day period has not yet passed.

Should no notice be filed by September 16, 2026, the clerk is directed to issue notice per CCP § 874.317(d)(3) that the Court orders partition by sale pursuant to CCP § 874.318(b) with the finding that Plaintiff has requested partition by sale and no cotenant has requested partition in kind. In making this finding, the Court notes that the property at issue is a single-family residence and therefore not reasonably capable of partition in kind. Should the CCP § 874.317(d)(3) notice issue, Plaintiff is reminded that a referee will be needed to proceed with the sale.

The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for either status of the buyout or status of the referee. **No appearance is necessary on today's calendar.**

IN RE SPRINGER

CASE NUMBER: 26PB-0033424

This matter is on calendar for confirmation of purchase of annuity. Petitioner filed a declaration on August 18, 2026 providing evidence that the annuity has been purchased as ordered. A Request for Dismissal was filed on August 18, 2026. As this matter has now been dismissed, the clerk is directed to close the file and vacate any future dates. **No appearance is necessary on today's calendar.**

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

This matter is on calendar for review regarding status of the case. On today's law and motion calendar, Plaintiffs were granted leave to file a third amended complaint. Following the filing of the complaint, Defendants will then have the opportunity to file a responsive pleading. The Court further notes that the matter is still not at issue. The matter is continued to **Monday, October 12, 2026 at 9:00 am in Department 63** for status of service, status of responsive pleading, and potential trial setting. **No appearance is necessary on today's 9:00 calendar.**

WARD, ET AL. VS. LEVINDOFSKE, ET AL.

CASE NUMBER: 25CV-0207586

This matter is on calendar for review regarding status of the case. Defendant's Motion to Strike was denied on this morning's Law & Motion calendar. Defendant has ten days to file an Answer. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for trial setting. **No appearance is necessary on today's calendar.**

WEBB VS. BIRD MICRO-ELECTRIC MOBILITY, ET AL.

CASE NUMBER: 25CV-0208413

This matter is on calendar for review regarding status of service. The Court notes that default was entered as to Defendant Howl Scooter on July 2, 2026. Plaintiff filed a status statement explaining that service on Defendant Bird Micro-Electric Mobility has been delayed. No information was provided as to Doe 1 Bird Rides, Inc. Plaintiff is ordered to take the necessary steps to ensure that the correct defendants are named in this action and that service is accomplished. The matter is continued to **Monday, November 23, 2026 at 9:00 a.m. in Department 63** for status of service and responsive pleadings. If the matter is not at issue by the next review hearing, Plaintiff is ordered to file a status statement no less than five court days prior to the review hearing. **No appearance is necessary on today's calendar.**